

Court No. - 21

Case :- WRIT - C No. - 44494 of 2014

Petitioner :- Janardan Dutt Shukla

Respondent :- State Of U.P. & 6 Others

Counsel for Petitioner :- Pramod Kumar Srivastava

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Vivek Kumar Birla,J.

Heard learned counsel for the petitioner.

The petitioner claims himself to be the eldest son of Late Sri Phool Chandra Shukla. According to the status of the family, as disclosed by the petitioner, the deceased consumer Late Sri Phool Chandra Shukla is survived by his widow Smt. Vidyawati, three adult sons and one adult married daughter.

The petitioner contends that the bills are being sent in the name of the petitioner's late father and the substitution has not been carried out.

For this the relevant procedure will have to be followed and no objection will have to be given and the entire outstanding dues will have to be cleared. If the petitioner completes all formalities then in view of the provisions contained in Clause 4.44 of the Electricity Supply Code, 2005 mutation can be carried out even suo motu.

This petition is disposed of with a direction and liberty to the petitioner to complete the formalities within a period of one month and file an application along with the requisite fees whatever may be chargeable before the respondent no.4 who shall proceed to then pass appropriate orders as per the aforesaid clause of the said Code within three weeks thereafter.

Order Date :- 27.8.2014

Anand Sri./-